

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 24, 2026 AT 8:30 A.M.**

16. S-CV-0055995 PANASYUK, BENJAMIN v. COUNTY OF PLACER

Defendant City of Folsom's Demurrer to the First Amended Complaint (FAC)

The demurrer is sustained in its entirety with leave to amend.

The second cause of action for negligence is deficiently pleaded as it fails to sufficiently allege facts to support a cause of action for liability against defendant. (Government Code section 815; *Ibarra v. California Coastal Comm.* (1986) 182 Cal.App.3d 687, 692.)

The second amended complaint shall be filed and served by August 24, 2026.

The court, on its own motion, continues the case management conference to **FRIDAY, DECEMBER 11, 2026 AT 9:00 A.M. IN DEPARTMENT 1.**

Defendant City of Folsom's Motion to Strike the First Amended Complaint (FAC)

The motion to strike is granted in its entirety without leave to amend.

The allegations stated against defendant in paragraphs 8, 63, 83, and 89 are irrelevant and inconsistent with the additional allegations pleaded against defendant in the remainder of the FAC.

Paragraphs 8, 63, 83, and 89 are stricken as it pertains to defendant City of Folsom without leave to amend.

The court, on its own motion, continues the case management conference to **FRIDAY, DECEMBER 11, 2026 AT 9:00 A.M. IN DEPARTMENT 1.**

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